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Superior Court of the State of California
County of Orange
TENTATIVE RULINGS FOR DEPARTMENT N14
HON. JULIANNE SARTAIN BANCROFT

Date: Monday, August 24, 2026, 9:00 a.m.

- All counsel and self-represented parties appearing for such hearings should check-in online through the Court's civil video appearance website at <https://www.occourts.org/media-relations/civil.html> prior to the commencement of their hearing. Once the online check-in is completed, participants will be prompted to join the courtroom’s Zoom hearing session. Check-in instructions and an instructional video are available on the court’s website. A party choosing to appear in person can do so by appearing in the courtroom on the date/time of the initial appearance. All hearings are open to the public. The courtroom doors are open.
- You must provide your own court reporter (unless you have a fee waiver and request one in advance).
- Call the other side and ask if they will submit to the tentative ruling. If everyone submits, then call the clerk. The tentative ruling will become the order. If anyone does not submit, there is no need to call the clerk. The court will hold a hearing. The court may rule differently at the hearing. (See *Lewis v. Fletcher Jones Motor Cars, Inc.* (2012) 205 Cal.App.4th 436, 442, fn. 1.)

#	Case Name	Tentative Ruling
101	Aguilar v PSMG, Inc., 2025-01526687	Motion to Compel Arbitration – GRANTED Defendant, PSMG, Inc. dba Pacwest Security Services (“Defendant”), petitions for an order compelling arbitration of all causes of action and to stay the instant action pending the outcome of the arbitration. The Petition is GRANTED. “ ‘ “California statutes create a ‘summary proceeding’ for resolving petitions or motions to compel arbitration. [Citation.] ‘The petitioner bears the burden of proving the existence of a valid arbitration agreement by the preponderance of the evidence, and a party opposing the petition bears the burden of proving by a preponderance of the evidence any fact necessary to its defense. [Citation.] In these summary proceedings, the trial court sits as a trier of fact, weighing all the affidavits, declarations, and other documentary evidence, as well as oral testimony received at the court's discretion, to reach a final determination.’ [Citation.]” [Citation.]’ [Citations.]” (Ramirez v. Charter Communications, Inc. (2024) 16 Cal.5th 478, 492.) “Federal and California law treat valid arbitration agreements like any other contract and favor their enforcement. [Citations.] The California Arbitration Act (Code Civ. Proc., § 1280 et seq.; CAA) expresses a “ ‘strong public policy in favor of arbitration as a speedy and relatively inexpensive means of dispute resolution.’ ” [Citations.]” (Ibid.) “A written agreement to submit a controversy to arbitration is valid, enforceable, and irrevocable, ‘save upon such grounds as exist for the revocation of any contract.’ [Citation.] Unconscionability provides such grounds. [Citation.]” (Ibid.) Here, Defendant attaches as Exhibit A, a copy of a document entitled, “Agreement to Arbitrate All Covered Claims” that was signed by the parties on August 1, 2022 (the “Arbitration Agreement”). The Arbitration Agreement states, in part: 1. Final and Binding Arbitration: Any and all claims, controversies or disputes ("Disputes")

relating to any aspect of Employee's employment with Company (pre-hire through post-termination), which Company may have against Employee, or which Employee may have against Company (which includes any subsidiary, parent or related entity, and any officer, director, shareholder, employee, representative or agent), shall be resolved through final and binding arbitration. Company and Employee each acknowledge that this means that Company and Employee are relinquishing the right to a court trial or jury trial of any Dispute, except as otherwise provided in this Agreement.

(Ex. A, Arbitration Agreement, ¶ 1.)

On November 19, 2025, Plaintiff, Victor Vargas Aguilar, filed the Complaint in this action, asserting claims for 1) Meal and Rest Break Violations of Labor Code § 226.7; 2) Failure To Pay Overtime & Wages; 3) Failure to Pay All Compensation at Termination, Waiting Time Penalties; 4) Failure to Provide Employment Records in Violation of Cal. Labor Code § 1198.5 et seq.; 5) Violation of Whistleblower Protection of Labor Code § 1102.5; 6. Retaliation in Violation of Gov. Code § 12940(h); 7) Wrongful Termination; and 8) Violation of Business & Professions Code § 17200 et seq. All claims arise out of Plaintiff's employment with Defendant as a security guard.

Based on the foregoing, Defendant meets its burden of proving the existence of an arbitration agreement by the preponderance of the evidence, as between it and Plaintiff, that applies to the claims in this action.

Plaintiff's opposition contends that the Arbitration Agreement, and in particular, the delegation clause, are both procedurally and substantively unconscionable and cannot be enforced.

"The parties to an arbitration agreement can agree in a delegation provision 'to arbitrate "gateway" questions of "arbitrability," such as whether the parties have agreed to arbitrate or whether their agreement covers a particular controversy.' [Citation.] An agreement to arbitrate a gateway issue—otherwise known as a delegation provision—is simply an additional,

antecedent agreement the party seeking arbitration asks ... [a] court to enforce,’ [Citations.]” (J.R. v. Electronic Arts Inc. (2024) 98 Cal.App.5th 1107, 1114.) “A party opposing enforcement of a delegation provision under the FAA must ‘challenge[] the delegation provision specifically.’ [Citations.]” (Ibid.) “Absent such a challenge, a court must treat the delegation provision as valid and enforce it, ‘leaving any challenge to the validity of [the arbitration agreement or] the [a]greement as a whole for the arbitrator.’ [Citation.]” (Ibid.)

California courts look to federal law when deciding arbitration issues under state law, have “looked to the FAA when considering delegation clauses [citation], and have long held that the rules governing these clauses are the same under both state and federal law. [Citations.]” (Tiri v. Lucky Chances, Inc. (2014) 226 Cal.App.4th 231, 239-240.) Parties to an arbitration agreement may agree to delegate to the arbitrator, instead of a court, questions regarding the enforceability of the agreement. (Id. at p. 241.) The court may consider the validity of the delegation clause. (Id. at p. 241, fn. 4.) For a delegation clause to be effective two pre-requisites must be met: (1) the language of the clause must be clear and unmistakable, and (2) the delegation must not be revocable under state contract defenses such as fraud, duress, or unconscionability. (Id. at p. 242.) The party seeking to enforce a delegation clause must show that it is clear and unmistakable; silence or ambiguity is insufficient. (Ibid.)

“[A] court must look to the precise nature of the claim that the party resisting arbitration is making. If it is claiming that it never agreed to the arbitration clause at all—e.g., if it is claiming forgery or fraud in the factum—then the court must consider that claim. On the other hand, if it is not denying that it agreed to the arbitration clause, but instead is claiming some other defense to enforcement of the arbitration clause—e.g., illegality or fraud in the inducement—then the court must enforce the ‘arbitrability’ portion of the arbitration clause by compelling the parties to submit that defense to arbitration.” (Bruni v. Didion (2008) 160 Cal.App.4th 1282, 1287.)

Here, the Arbitration Agreement states, in relevant part:

5. Enforceability of this Agreement: In the event of a dispute related to the validity, enforceability, formation or interpretation of this Agreement, in whole or in part, the arbitrator shall have the sole and exclusive authority to consider and resolve the dispute. This includes, but is not limited to, a claim that all or any portion of this Agreement is void, voidable or otherwise unenforceable based on unconscionability or any other basis. If any provision of this Agreement is determined to be void, voidable or unenforceable, in whole or in part, the remainder of the Agreement shall remain in full force and effect.

(Ex. A, Arbitration Agreement, ¶ 5.)

The language in the Arbitration Agreement is clear and unmistakable that the parties agreed to delegate questions regarding the enforcement of the Arbitration Agreement, and specifically whether the Arbitration Agreement is unenforceable based on unconscionability, to the arbitrator.

Plaintiff here does not deny that he agreed to the Arbitration Agreement, or the existence of the Arbitration Agreement. To the extent that Plaintiff is raising a defense to enforcement of the Arbitration Agreement on the grounds that it is unconscionable, that is for an arbitrator to decide. However, the Court may consider Plaintiff's argument that the delegation clause itself is not valid and is unconscionable.

Unconscionability has a procedural and a substantive element: the procedural element focuses on the existence of oppression or surprise and the substantive element focuses on overly harsh or one-sided results. (Armendariz v. Foundation Health Psychcare Services, Inc. (2000) 24 Cal.4th 83, 114; Nyulassy v. Lockheed Martin Corp. (2004) 120 Cal.App.4th 1267, 1281 ("Nyulassy".) An agreement must be both procedurally and substantively unconscionable to permit the court to refuse to enforce the agreement or a given clause as unconscionable. (Stirlen v. Supercuts, Inc. (1997) 51 Cal.App.4th 1519, 1533.) "[T]hese elements, however,

need not be present in the same degree. ‘[T]he more substantively oppressive the contract term, the less evidence of procedural unconscionability is required to come to the conclusion that the term is unenforceable, and vice versa.’” (Mercuro v. Super. Ct. (2002) 96 Cal.App.4th 167, 174.)

Plaintiff contends that the Arbitration Agreement is procedurally unconscionable as an adhesion contract since it was a mandatory condition of employment.

In reply, Defendant asserts that there is no evidence that Plaintiff’s signing of the Arbitration Agreement was a condition of his employment, and that the Arbitration Agreement itself spells out the employee’s rights with respect to signing the agreement.

“A procedural unconscionability analysis ‘begins with an inquiry into whether the contract is one of adhesion.’ [Citation.]” (OTO, L.L.C. v. Kho (2019) 8 Cal. 5th 111, 126 (“Oto”).) An adhesive contract is standardized, generally on a preprinted form, and offered by the party with superior bargaining power ‘on a take-it-or-leave-it basis.’ [Citations].” (Ibid.) A contract of adhesion is “a ‘standardized contract which, imposed and drafted by the party of superior bargaining strength, relegates to the subscribing party only the opportunity to adhere to the contract or reject it.’ [Citation.]” (Ramirez v. Charter Communications, Inc. (2024) 16 Cal.5th 478, 492.)

“When arbitration is a condition of employment, there is inherently economic pressure on the employee to accept arbitration. This alone is a fairly low level of procedural unconscionability. [Citation.]” (Cisneros Alvarez v. Altamed Health Services Corporation (2021) 60 Cal.App.5th 572, 591.)

Plaintiff presents no evidence to support the assertion that this Arbitration Agreement was a mandatory condition of employment. As such, Plaintiff has not met his burden of proving unconscionability by a preponderance of the evidence, and the Court need to evaluate substantive unconscionability. (See Ramirez v. Charter Communications, Inc. (2024) 16 Cal.5th 478, 494 [“A court should consider substantive unconscionability only after procedural unconscionability has been established”].)

		Based on the foregoing, the Court GRANTS the petition to compel arbitration and stays this action pending completion of arbitration. The Court sets an ADR Review hearing for June 7, 2027, 1:30 p.m., in Department N14. Defendant to give notice.
102	Cabaccang v. Costco Wholesale Corp., 2026-01560439	Demurrer – MOOT
103	Cloutier v. Khedraki, 2025-01503041	Motion re Approval of Settlement – CONTINUED OSC re Dismissal on Settled Case – CONTINUED Defendants Ousama Khedraki and Dima Khedraki (together, “Defendants”) move for an order approving the settlement reached between the parties. An enforceable settlement of an action involving a person lacking the capacity to make decisions can only be consummated with court approval. (Code Civ. Proc., § 372(a)(3) [guardian ad litem appearing for person who lacks legal capacity to make decisions may, with approval of the court, compromise the same].) A petition for court approval of a compromise under Code of Civil Procedure section 372 must comply with California Rules of Court, rules 7.950, 7.950.5, 7.951, and 7.952. A petition for court approval of a compromise or settlement of a pending action to which a person with a disability is a party must be verified by the petitioner and, except as provided in rule 7.950.5 (which is not applicable here), submitted on form MC-350. (Cal. Rules of Court, rule 7.950.) Here, Defendants’ Motion is not verified or on the required form. Thus, the hearing on Defendants’ Motion and on the OSC re Dismissal is CONTINUED to September 28, 2026, at 9:00 a.m., in Department N14. Defendants are ORDERED to file and serve the proper forms no later than 16 days before the continued hearing date.

		Moving party to give notice.
104	County of Orange v. Nautilus Insurance Co., 2026-01547503	Motion for Leave to File Amended Complaint – GRANTED Motion for Judgment on the Pleadings – DENIED AS MOOT Plaintiff County of Orange moves for leave to file a first amended complaint against defendant Nautilus Insurance Company. Plaintiff is suing Defendant for failing to defend Plaintiff in a prior personal injury suit filed by Miguel Angel Moran regarding an incident that occurred on January 1, 2022 at or near the sidewalk located at 1928 S. Grand Avenue, Santa Ana. Plaintiff leases the subject property from the owner, Centurion Partners Santa Ana, LLC. After filing the action, Defendant informed Plaintiff that even though Plaintiff is named an additional insured under the landlord's CGL insurance policy, the address set forth on the endorsement is 888 N. Main Street, Suite 159, Santa Ana. Plaintiff argues that this mistake was made by either or both the landlord and Defendant, and that Plaintiff was never notified of the mistake. Once Plaintiff was advised of Defendant's position, it filed the instant motion for leave to amend to seek reformation to change the address on the endorsement to the correct address. Defendant argues the motion for leave to amend should be denied because it is barred by the statute of limitations, as the policy was entered into on or around February 23, 2021 and Plaintiff did not file this action until February 11, 2026. Defendant further argues that the additional claim for breach of the implied covenant of good faith and fair dealing is unnecessary and duplicative of the bad faith claim in the original pleading. Defendant contends that these defects cannot be cured by any further amendment.

		The statute of limitations period for an action for relief on the ground of fraud or mistake is three years. (Code Civ. Proc., § 338(d).) “The cause of action in that case is not to be deemed to have accrued until the discovery, by the aggrieved party, of the facts constituting the fraud or mistake.” (Ibid.) In order for a claim to be barred by the statute of limitations, the defect must clearly appear on the face of the complaint; “ ‘it is not enough that the complaint shows merely that the action may be barred.’ ” (E-Fab, Inc. v. Accountants, Inc. Services (2007) 153 Cal.App.4th 1308, 1315-1316.) In the proposed first amended complaint, the reformation cause of action alleges that Plaintiff was not aware of the mistaken address in the endorsement and the mistake does not truly express the intention of the parties. These allegations do not establish on the face of the proposed first amended complaint that the reformation cause of action is barred by the applicable statute of limitations. Thus, pursuant to the policy of great liberality in permitting amendments absent prejudice, leave to amend is GRANTED. Plaintiff is ORDERED to file and serve its amended complaint within 10 days of the date of this order. Defendant’s Motion for Judgment on the Pleadings is DENIED as MOOT in light of the Court’s granting Plaintiff leave to amend. Plaintiff to give notice.
105	De La Torre v. CalOptima Health, 2025-0146323	Motion to be Relieved as Counsel – GRANTED Attorney Bijan Mohseni seeks an order relieving them from acting as counsel of record for Plaintiff Melissa De La Torre. Motions to be relieved as counsel pursuant to Code of Civil Procedure § 284(2) are governed by California Rules of Court, Rule 3.1362. All the requirements of California Rules of Court, Rule 3.1362 have been met, and the Declaration of Attorney

		Bijan Mohseni appears to demonstrate good cause for granting the motion based on the allegations that there has been a breakdown in the attorney-client relationship, and the attorney can no longer represent Plaintiff's interest in this matter. Additionally, all required judicial counsel forms (MC-051, MC-052, and MC-053) have been utilized and properly served. (Cal. Rules of Court, rule 3.1362(a)-(d).) Plaintiff was served by mail at their last known address. The Motion to Be Relieved as Counsel of Record is GRANTED. Court will interlineate the proposed order (ROA 97) to include MSC and Trial dates. Attorney is relieved as counsel of record upon filing the proof of service of the order. Moving party to give notice.
106	Mann v. Paley, 2025-01521967	Motion for Leave to File Amended Complaint – GRANTED Plaintiff Dianna Mann moves pursuant to Code of Civil Procedure sections 473 and 576 to file a First Amended Complaint. Defendants Catherine E. Paley and Peter A. Paley oppose the motion. The court may allow a party to amend any pleading in furtherance of justice, even after trial has begun. (Code Civ. Proc., §§ 473(a), 576.) Courts liberally allow amendments to permit lawsuits to be determined on their merits. (Nestle v. Santa Monica (1972) 6 Cal.3d 920, 939; Desney v. Wilder (1956) 46 Cal.2d 715, 751.) “It is well established that ‘California courts have a policy of great liberality in allowing amendments at any stage of the proceeding so as to dispose of cases upon their substantial merits where the authorization does not prejudice the substantial rights of others.’ (Board of Trustees v. Superior Court (2007) 149 Cal.App.4th 1154, 1163.)

		Here, the Court finds that Plaintiff met all procedural requirements and provided all information in support of the proposed amendment pursuant to California Rules of Court, rule 3.1324(a) & (b). Plaintiff shall file the proposed First Amended Complaint within 10 days of this order. Plaintiff to give notice.
107	O’Kane v. Radovich, 2022-01276312	Motion to Continue Trial – MOOT
108	Premier Liberty Development LLC v. Nguyen, 2018-01008782	Plaintiff’s Motion for Summary Judgment – DENIED This case involves the priority of deeds of trust on a piece of commercial real property. Plaintiff Premier Liberty Development’s operative complaint contains a single cause of action for declaratory relief of three issues: (1) the reconveyance of Premier’s deed of trust was forged and the Premier deed of trust remains superior to Defendant Velocity Commercial Capital’s deed of trust (2) Premier had the right to foreclose on its lien created by the Premier deed of trust which remains as a lien on the Property superior to any claim by any defendant (including Velocity) to the Property after the recording of the Premier Deed of Trust; and (3) Velocity must disgorge and refund to Premier all sums which it received as restitution, specifically, the sum of \$2,573,757, together with all accrued interest from and after November 7, 2024, at the legal rate of ten percent (10%). To prevail on a motion for summary adjudication, a plaintiff must show that there is no defense to the cause of action, by proving each element of the cause of action itself. Once plaintiff makes such a showing, the burden shifts to the defendants to show a triable issue of material fact exists as to the cause of action or a defense thereto. (Code Civ. Proc., §437c(p)(1).) “To qualify for declaratory relief under section 1060, plaintiffs were required to show their action presented two essential elements: ‘(1) a proper subject of declaratory relief, and (2) an actual controversy

involving justiciable questions relating to the rights or obligations of a party.” (Lee v. Silveira (2016) 6 Cal.App.5th 527, 546.)

Plaintiff Premier fails to establish its initial burden under CCP 437c.

Rather than plainly addressing elements 1 and 2 for each of the 3 issues for “determination”, Plaintiff merely suggests there can be no triable issue of any material fact because the signature of the beneficiary and substituted trustee was forged. Plaintiff then goes on to argue why the Court can award monetary relief. Notably, these arguments are not raised until page 18 of the motion. Finally, to wrap everything up, Plaintiff concludes, “The practical effect of a judgment for Premier is straightforward: The court would declare that Premier’s trust deed is senior to Velocity’s trust deed, Velocity would repay what it owes from the May 2022 foreclosure sale, and the current owner would retain title free and clear of Premier’s then extinguished lien.” [Motion page 21: 10-13] However, the Court does not find the arguments to be nearly as straightforward as Plaintiff suggests.

Initially, this motion is difficult to analyze. Despite being a motion for summary judgment, Plaintiff seeks determination of three issues. But Plaintiff has lumped all the facts and issues together in both the memorandum of points and authorities and the separate statement. Making the analysis more difficult, there is no reference to any undisputed material facts or evidence in either party’s briefing. That is, neither party makes any effort to direct the Court to the facts or evidence it contends supports its claims. Without such direction, the Court is left to rummage through the papers to construct the evidence in support of the arguments. When faced with a procedural default which makes it more difficult for the trial court to efficiently resolve a summary judgment motion, the court is not required to simply ignore the defect. It is a party’s “duty to direct the court to evidence that supports their claims. It is not the court's duty to rummage through the papers

to construct or resuscitate their case.” (Collins v. Hertz Corp. (2006) 144 Cal.App.4th 64, 75.)

Even if Plaintiff did make arguments relating to each element of each of the three “determinations”, it fails to cite to any evidence in support of those arguments.

Even if Plaintiff had sustained its initial burden on this motion, Defendant has established triable issues of material fact by raising several affirmative defenses.

Defendant argues that the issues as to which Plaintiff seeks declaratory relief all fail as a matter of law because Plaintiff seeks declarations concerning completed historical events, not the resolution of any present controversy. Defendant cites to Babb v. Superior Court (1971) 3 Cal.3d 841, 848: “[D]eclaratory procedure operates prospectively, and not merely for the redress of past wrongs. It serves to set controversies at rest before they lead to repudiation of obligations, invasion of rights or commission of wrongs; in short, the remedy is to be used in the interests of preventive justice, to declare rights rather than execute them.”

Here, arguably, as to the first two issues to be “determined”, these have already occurred. No preventative benefit is possible by a Court’s determination relating to issues 1 and 2. This creates a triable issue.

Also, there are triable issues of material fact as to whether a declaration/determination as to the money sought is a proper subject for declaratory relief. As cited by Defendant, “Declaratory relief operates prospectively to declare future rights, rather than to redress past wrongs. [Citation.] Where, as here, a party has a fully matured cause of action for money, the party must seek the remedy of damages, and not pursue a declaratory relief claim. [Citation.]” (Canova v. Trustees of Imperial Irrigation Dist. Employee Pension Plan (2007) 150 Cal.App.4th 1487, 1497.)

Furthermore, this Court cannot say WFG National Title Ins. Co. v. Wells Fargo Bank, N.A. (2020) 51 Cal.App.5th

881 requires judgment in favor of Plaintiff as a matter of law.

When Judge Sherman granted a motion for summary adjudication in favor of Plaintiff and denied a motion for Defendant (which was reversed by the appellate court procedurally, NOT on the merits), he relied heavily on the WFG case. “The case of WFG National Title Ins. Co. v. Wells Fargo Bank, N.A. (2020) 51 Cal.App.5th 881, is on all fours with this case and compels a ruling in plaintiff’s favor. The court held that a forged deed is void, and that any deed of trust derived from the forged deed does not result in the new owner or its lender having any valid interest in the property. Rather, the prior lender still maintains its interest, and cannot be found negligent for failing to monitor the status of title to the property and discover the forged documents earlier. The fact that a new buyer is a bona fide purchaser and its lender acted in good faith without knowledge of the wrongdoing does not change the outcome. The doctrine of equitable estoppel requires the original lender to have been negligent, but the lender was not negligent in failing to discover the forged documents earlier because it had no duty as a matter of law to check the record.”

Here, in opposition, Defendant argues that although a forged instrument is generally void and cannot convey title, California recognizes an exception where the true owner's own negligence contributed to the loss. Under the doctrine of equitable estoppel, an innocent party may rely on a forged instrument if the original owner's negligence enabled the forgery or otherwise caused the harm. (Civ. Code, § 3543; WFG, supra, 51 Cal.App.5th 881; Wutzke v. Bill Reid Painting Service, Inc. (1985) 151 Cal.App.3d 36, 44-45; Crittenden v. McCloud (1951) 106 Cal.App.2d 42, 50.

In WFG, the Court did not hold otherwise. Rather, it simply found negligence by the owner of record cannot be predicated on a failure to monitor the public records or to make known the existence of a forgery in some way to prospective grantees or the public generally.

Further, Defendant distinguishes WFG by arguing that in WFG, Wells Fargo was the senior lienholder who was entirely unaware of and had no connection to the fraudulent transaction; the fraud was perpetrated entirely by third parties acting without any nexus to Wells Fargo's conduct. Here, by contrast, Premier's own borrowers, Jimmy Phan and Stephen Nguyen, were the perpetrators of the forgery, and Premier had ongoing, active dealings with these parties, including receiving monthly mortgage payments through March 2017 from parties other than its original borrowers. Premier's receipt of payments from unknown third parties without inquiry, combined with the fact that title to the Property had been transferred multiple times, created circumstances that a prudent lender in Premier's position would have investigated. Unlike Wells Fargo in WFG, Premier had a direct contractual relationship with the forgers and was receiving the economic benefit of the fraudulent scheme's proceeds.

Defendant further argues that the negligence question, whether Premier's failure to investigate the identity of the parties making payments, enforce the due-on-sale clause, or inquire into the chain of title constituted a breach of a duty of reasonable care, presents a triable issue of material fact that cannot be resolved on MSJ.

A triable issue of material fact exists as to the issue of equitable estoppel/negligence. Although the 2017 case was dismissed while the 2018 case was on appeal, Judge Horn's order that there was a triable issue of material fact "regarding whether the failure to discover the fraudulent conveyances earlier was negligent is still the law of the case.

There being no objection to either request for judicial notice, both parties' requests are granted to the extent the documents exist, but not to the truth of the contents therein.

In ruling on the motion, the court need only rule on those evidentiary objections that it deems material to disposition of the motion. (Code Civ. Proc., § 437c(q).) Here, the Court finds Plaintiff's objections to

		Defendant's evidence are immaterial to the disposition of the motion. Defendant to give notice.
109	Quiroz v. Cable Tech Corp., 2023-01340996	Motion to Consolidate
110	Shelton v. Children's Hospital of Orange County, 2025-01451163	Motions for Summary Judgment and/or Adjudication – GRANTED IN PART In October 2021, then 15-year-old Makyla Shelton underwent surgery at CHOC to remove a carcinoma on her neck. Doctors Kevin Huoh, M.D. and Gurpreet Ahuja, M.D. informed Makyla and her parents, Rodger and Jill Shelton, that the entire tumor had been removed and the margins were clean or clear. In April or May 2022, an MRI showed a tumor recurrence. Makyla obtained a second opinion at UCLA, where she underwent a second surgery and received radiation treatment. Makyla, Rodger and Jill Shelton sued doctors Huoh and Ahuja for medical malpractice. These defendants filed separate motions for summary judgment and/or adjudication. (Code Civ. Proc., § 437c.) The motions are generally identical and rely on the exact same expert declaration and evidence. Plaintiffs oppose the motions but request a continuance in order to conduct additional discovery including: the depositions of Dr. Huoh and Dr. Ahuja, the depositions of the pathologists who reported the frozen sections and the final margin status, a person-most-knowlegeable deposition of CHOC concerning the Tumor Board's composition and deliberations, the deposition of the oncologist alleged to have described the situation as "political," and the production of pathology slides and

blocks and imaging studies in a form permitting independent expert review.

First, the motion for summary judgment is GRANTED as to Plaintiffs Rodger Shelton and Jill Shelton. In the opposition, Plaintiffs appear to concede that they do not have standing to assert a medical malpractice cause of action against Defendant. Notably, even if Plaintiffs had standing to bring the first cause of action, the cause of action is barred by the one year after discovery of the injury statute of limitations. (See Code Civ. Proc., § 340.5; Young v. Haines (1986) 41 Cal.3d 883, 897, fn. 10.)

The Court finds, however, that Defendants have not established that Plaintiff Makyla Shelton is barred from bringing the first cause of action for medical malpractice by Code of Civil Procedure section 340.5. As a minor, Makyla's claim is not subject to the one year statute of limitations discussed in the moving papers. (Young v. Haines (1986) 41 Cal.3d 883) Summary judgment on Makyla's claim is DENIED as to this argument.

As to Defendants' remaining arguments that (1) the care and treatment he rendered to Makyla was well-within the standard of care at all times and (2) no act or omission by them caused Makyla's claimed injuries, Makyla requests a continuance pursuant to Code of Civil Procedure section 437c(h). Makyla's counsel's declaration identified specific depositions and specific materials her expert witness needed to review. The declaration states that all of this discovery was scheduled to be completed in August 2026. Defendants' counsel's declaration states that none of the discovery was even requested before Plaintiffs' opposition to the MSJ was due.

At the hearing, counsel shall be prepared to provide the Court with the following:

1. A detailed list of the discovery necessary for Plaintiffs' expert witness to provide a declaration in opposition to the MSJ.
2. Copies of documents (discovery request with proofs of service; copies of letters or emails, etc.)

		showing when Plaintiffs requested the items identified in category #1. 3. Copies of documents (discovery responses with proofs of service; copies of letters or emails, etc.) showing Defendants' response to the requests the items identified in category #1. 4. Identification of which of the items in category #1 have been provided/produced in full, which have been provided/produced in part, and which have yet to be provided/produced. 5. If the Court were to grant the continuance, when any remaining deponents would be available.. 6. If the Court were to grant the continuance, when Plaintiffs would be prepared to file further opposition to the MSJ.
111	Solouki v. Saint-Gobain Performance Plastics Corp., 2025-01507443	Motion to be Relieved as Counsel – CONTINUED Gloria Tumanyan (“Moving Attorney”) moves to be relieved as counsel of record for plaintiff Tony Solouki. Moving Attorney has not submitted the mandatory declaration (MC-052) and proposed order forms (MC-053) required under the California Rules of Court. Thus, the motion is CONTINUED to September 28, 2026, at 9:00 a.m. in Department N14. Moving Attorney is ORDERED to timely file and serve the appropriate forms prior to the continued hearing date. Moving Attorney to give notice.
112	Virgili v. Crites, 2025-01527043	Motion to Compel Arbitration – CONTINUED TO 12/12/2026, 9:00 a.m. PER COURT’S 08/13/2026 ORDER
113	Yu v. Universal Waste Systems, 2026-01548728	Motion for Leave to Amend – MOOT

114	Red Hill Village v. Shere, 2024-01424721	Motion for Attorney Fees – GRANTED After this Court granted Plaintiff Red Hill Village, LLC’s motion for summary judgment, judgment was entered in favor of Plaintiff and against Defendant Kaiser Shere. Based on the parties’ contract, Plaintiff now moves for an order granting attorney fees in the amount of \$35,349.50. The Court OVERRULES Defendant’s Evidentiary Objections Nos. 1, 2, 4-9, 11, 12. The Court SUSTAINS Objection Nos. 3 and 10 on the ground the “transaction listing report” attached as Exhibit 1 is hearsay. <u>Attorney Fees Provision</u> Plaintiff brings the instant motion for attorney fees under Civil Code section 1717, pursuant to an agreement by the parties. “ ‘Before section 1717 comes into play, it is necessary to determine whether the parties entered into an agreement for the payment of attorney fees, and if so, the scope of the attorney fee agreement.’ [Citation.]” (Mountain Air Enterprises, LLC v. Sundowner Tower, LLC (2017) 3 Cal.5th 744, 752.) Defendant argues that Plaintiff did not attach or authenticate the Lease or Guaranty containing the fee clause. However, the reply argues that the operative Lease and Guaranty were submitted previously and attached to the Declaration of Bonaparte Lui in conjunction with Plaintiff’s Motion for Summary Judgment, and requests that the Court take judicial notice of the documents filed on June 12, 2025. The Court takes judicial notice of the Declaration of Bonaparte Lui in conjunction with Plaintiff’s Motion for Summary Judgment, pursuant to Evidence Code section 452(d). (ROA 55.) Paragraph 31 of the Lease provides for attorney fees and states, in part: “If any Party or Broker brings an action or proceeding involving the Premises whether founded in tort, contract or equity, or to declare rights hereunder,
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the Prevailing Party (as hereafter defined) in any such proceeding, action, or appeal thereon, shall be entitled to reasonable attorneys' fees. Such fees may be awarded in the same suit or recovered in a separate suit, whether or not such action or proceeding is pursued to decision or judgment. The term, 'Prevailing Party' shall include, without limitation, a Party or Broker who substantially obtains or defeats the relief sought, as the case may be, whether by compromise, settlement, judgment, or abandonment by the other Party or Broker of its claim or defense." (ROA 55, Ex. 1 to Declaration of Bonaparte Lui, Lease at p. 14, ¶ 31.)

The Guaranty signed by Defendant states: "In the event any action be brought by said Lessor [KSN Investments, Inc.] against Guarantors [Kaiser Shere] hereunder to enforce the obligation of Guarantors hereunder, the unsuccessful party in such action shall pay to the prevailing party therein a reasonable attorney's fee. The attorney's fee award shall not be computed in accordance with any court fee schedule, but shall be such as to full reimburse all attorney's fees reasonably incurred." (ROA 55, Ex. 1 to Declaration of Bonaparte Lui, Guaranty.)

Plaintiff acquired the property located at 14601 Red Hill Avenue, Tustin California 92780 (the "Premises"), which is at the center of this dispute, and as part of the acquisition, assumed the written Lease executed on or about January 16, 2025 between KSN Investments, Inc. and Defendant. (ROA 55, Declaration of Bonaparte Lui, ¶¶ 3-4.)

A valid, written agreement existed between the parties for an award of attorney fees to the prevailing party for an action involving the Premises and to enforce the obligation of a Guarantor.

Entitlement to Attorney Fees

"[E]ach party to a lawsuit is responsible for his or her own attorney's fees in the absence of an agreement between the parties for fees or a statute specifically authorizing fees. [Citations.]" (Pederson v. Kennedy (1982) 128 Cal.App.3d 976, 979.)

Civil Code section 1717, subdivision (a) provides, “In any action on a contract, where the contract specifically provides that attorney’s fees and costs, which are incurred to enforce that contract, shall be awarded either to one of the parties or to the prevailing party, then the party who is determined to be the party prevailing on the contract, whether he or she is the party specified in the contract or not, shall be entitled to reasonable attorney’s fees in addition to other costs.” (Civil Code § 1717(a).)

Civil Code section 1717(b)(1) states: “The court, upon notice and motion by a party, shall determine who is the party prevailing on the contract for purposes of this section, whether or not the suit proceeds to final judgment. Except as provided in paragraph (2), the party prevailing on the contract shall be the party who recovered a greater relief in the action on the contract. The court may also determine that there is no party prevailing on the contract for purposes of this section.” (Civil Code § 1717(b)(1).) Civil Code section 1717(b)(2) provides, “Where an action has been voluntarily dismissed or dismissed pursuant to a settlement of the case, there shall be no prevailing party for the purposes of this section.”

“When a party obtains a simple, unqualified victory by completely prevailing on or defeating all contract claims in the action and the contract contains a provision for attorney fees, section 1717 entitles the successful party to recover reasonable attorney fees incurred in prosecution or defense of those claims. [Citation.]” (Scott Co. of California v. Blount, Inc. (1999) 20 Cal.4th 1103, 1109.)

Here, there is no dispute that Plaintiff is the prevailing party as summary judgment was entered in its favor, with Defendant taking nothing. (Decl. of Stelzer, ¶¶ 7-8.)

Lodestar

The determination of the appropriate award of attorney fees ordinarily begins with ascertainment of the “lodestar,” i.e., the number of hours reasonably expended multiplied by the reasonable hourly rate.

(EnPalm, LLC v. Teitler Family Trust (2008) 162 Cal.App.4th 770, 774; see Mountjoy v. Bank of America, N.A. (2016) 245 Cal.App.4th 266, 271-282 [discussing general principles governing attorney fee awards].) The reasonable hourly rate is that prevailing in the community for similar work; but the court may use out-of-area rates when the prevailing party shows it was impracticable to use local counsel. (In re Tobacco Cases I (2013) 216 Cal.App.4th 570, 582.)

The lodestar figure may then be adjusted, based on consideration of factors specific to the case, to fix the fee at the fair market value for the legal services provided. (PLCM Group v. Drexler (2000) 22 Cal.4th 1084, 1095.) The Court has discretion to reduce the fee award where fees were not reasonably incurred. (See Ketchum v. Moses (2001) 24 Cal.4th 1122, 1132 [‘[P]adding’ in the form of inefficient or duplicative efforts is not subject to compensation.”]; Gorman v. Tassajara Dev. Corp. (2009) 178 Cal.App.4th 44, 101 [“A reduced award might be fully justified by a general observation that an attorney overlitigated a case or submitted a padded bill or that the opposing party has stated valid objections.”].)

A court has wide discretion in determining what constitutes reasonable attorney fees. The court typically makes this determination based upon declarations without live testimony. The value of legal services performed in a case is a matter in which the court has its own expertise, and thus may make its own determination of the value of the services contrary to, or without the necessity for, expert testimony. (PLCM Group v. Drexler (2000) 22 Cal.4th 1084, 1096; Padilla v. McClellan (2001) 93 Cal.App.4th 1100, 1107; Syers Properties III, Inc. v. Rankin (2014) 226 Cal.App.4th 691, 698 [“experienced trial judge is the best judge of the value of professional services rendered in his court”].)

“ ‘[T]he [party] . . . seeking fees and costs “ ‘bear[s] the burden of establishing entitlement to an award and documenting the appropriate hours expended and hourly rates.’ [Citation.]” ’ (Christian Research Institute v. Alnor (2008) 165 Cal.App.4th 1315, 1320.) ‘ “To that end, the court may require [a] defendant[] to produce records sufficient to provide “ ‘a proper basis for determining how much time was spent on particular claims.” ’ [Citation.]” ’ (Ibid.) ‘The evidence should allow the court

to consider whether the case was overstaffed, how much time the attorneys spent on particular claims, and whether the hours were reasonably expended. [Citation.]’ (Ibid.) ‘ “The court . . . may properly reduce compensation on account of any failure to maintain appropriate time records. [Citation.]” ’ (Ibid.)”

Reasonableness of Hours Incurred

Defendant contends that Plaintiff did not provide admissible evidence supporting the claimed hours and rates, and did not lay the required business-records foundation for any billing entries.

Although the objection to the “transaction listing report” is sustained, billing records are not required, and Plaintiff’s counsel’s declaration provides personal knowledge of the hourly rates and hours billed by all attorneys and paralegals. (Decl. of Stelzer, ¶ 2 [“I completed a thorough review of all time entries billed to our client as well as all work-product and correspondence completed by my office”], ¶ 10 [“In preparing this Declaration, I reviewed all transactions”], ¶¶ 11-13, 16-18.) Attorney Stelzer sets forth the hours billed by each timekeeper, for which Attorney Stelzer establishes personal knowledge and foundation. “The law is clear, however, that an award of attorney fees may be based on counsel’s declarations, without production of detailed time records.” (Raining Data Corp. v. Barrenechea (2009) 175 Cal.App.4th 1363, 1375.) “...the verified time statements of the attorneys, as officers of the court, are entitled to credence in the absence of a clear indication the records are erroneous.” (Horsford v. Bd. Of Trustees Of California State Univ. (2005) 132 Cal. App. 4th 359, 396.) “California law does not require detailed billing records to support a fee award; ‘[a]n attorney’s testimony as to the number of hours worked is sufficient evidence to support an award of attorney fees, even in the absence of detailed time records.’ [Citation.]” (Rancho Mirage Country Club Homeowners Assn. v. Hazelbaker (2016) 2 Cal.App.5th 252, 263-264.) “Furthermore, ‘[a]n award for attorney fees may be made in some instances solely on the basis of the experience and knowledge of the trial judge without the need to consider any evidence.’ [Citation.]”

(Id. at p. 264.) A trial court is not required to issue any explanation of its decision with regard to a fee award. (Ibid.)

Plaintiff's counsel provides that Managing Partner of the Business Real Estate Group, Cynthia D. Stelzer expended 9.40 hours; that associate attorney Taylor McElroy expended 30.80 hours; that former associate attorney Cameron Neubauer expended 34.90 hours; and that paralegal Michelle Desilets expended 20 hours. (Decl. of Stelzer, ¶ 18.) It is anticipated that McElroy will expend an additional 2.0 hours. (Decl. of Stelzer, ¶ 18.) In total, Plaintiff provides that a total of 94.1 hours has been reasonably incurred by Plaintiff. Plaintiff's counsel also provides that appropriate redactions to the hours expended were made to exclude time and costs not appropriately recoverable. (Decl. of Stelzer, ¶ 10.) These hours appear reasonable for the prosecution of a case through initial filing, discovery and summary judgment.

“The party opposing the fee award can be expected to identify the particular charges it considers objectionable.” (Gorman v. Tassajara Development Corp. (2009) 178 Cal.App.4th 44, 101.) To oppose a showing of a fee request supported by declarations describing the efforts taken with billing records to establish the hours of work, a party may “attack the itemized billings with evidence that the fees claimed were not appropriate, or obtain the declaration of an attorney with expertise in the procedural and substantive law to demonstrate that the fees claimed were unreasonable.” (Premier Med. Mgmt. Sys. v. Cal. Ins. Guarantee Assoc. (2008) 163 Cal.App.4th 550, 563-564.) “In challenging attorney fees as excessive because too many hours of work are claimed, it is the burden of the challenging party to point to the specific items challenged, with a sufficient argument and citations to the evidence. General arguments that fees claimed are excessive, duplicative, or unrelated do not suffice.” (Id. at p. 564.)

Defendant asserts that Plaintiff improperly seeks fees for unrelated work, including the unlawful detainer case, the writ of attachment, settlement with KSN, discovery unrelated to the motion for summary judgment, work not used in the motion for summary

judgment, and work on matters outside this case. Defendant also argues that Plaintiff improperly seeks fees for duplicative work, excessive hours, and tasks not reasonably necessary to this litigation including 30.8 hours drafting the motion for summary judgment by McElroy, 34.9 hours drafting the motion for summary judgment by Neubauer, and 14.8 hours drafting discovery responses, in addition to multiple “review case file” entries, multiple “NO CHARGE” entries (showing padding), paralegal performing attorney work, and attorneys performing clerical work.

Initially, Defendant’s objections cannot be understood without reference to the “transaction listing report,” but since it is not considered, the opposition to certain work cannot be properly evaluated.

Even if the Court considers Defendant’s arguments with reference to the “transaction listing report,” Defendant fails to identify the specific entries to which Defendant objects, Defendant fails to explain how or why certain work is “unrelated work” that should not be compensated, and other than the total hours for drafting the motion for summary judgment and drafting discovery responses, Defendant fails to identify any entry where a paralegal is performing attorney work and attorneys are performing clerical work. Additionally, paralegal work is compensable. Necessary support services for attorneys, including secretarial and paralegal services, are includable within an attorney fee award where those services are necessary and reasonable. (*Salton Bay Marina, Inc. v. Imperial Irrigation District* (1985) 172 Cal.App.3d 914, 951.)

Lastly, five (5) “NO CHARGE” entries do not reflect padding, and there is no entry for “review case file.” Further, the 30.8 hours and 34.9 hours are the total hours billed by attorneys McElroy and Neubauer, respectively. Defendant does not establish that these were hours solely for the motion for summary judgment. Similarly, 14.8 hours is the total number of hours billed by paralegal Desilets at the \$175 per hour rate. Defendant does not establish that these hours were solely to draft discovery responses. Thus, Defendant fails

to show that the hours claimed for work on the motion for summary judgment or to draft discovery responses was excessive. Ultimately, Defendant's opposition to fees consists of general arguments that the fees are excessive, duplicative, and/or unrelated, which is insufficient.

Reasonableness of Rates

In determining a reasonable rate for the attorney's services, courts usually consider: (1) the prevailing rate charged by attorneys of similar skill and experience for comparable legal services in the community; (2) the nature of the work performed; and (3) the attorney's customary billing rates. (See *Serrano v. Unruh* (1982) 32 Cal.3d 621, 643.) The reasonable hourly rate is that prevailing in the community for similar work. (In re Tobacco Cases I (2013) 216 Cal.App.4th 570, 582.)

Plaintiff's contends that the following rates are reasonable: \$525 per hour for Stelzer, who has practiced in San Diego County continuously for approximately 23 years; \$375 per hour for McElroy who has practiced in San Diego County continuously for over five (5) years, and Neubauer who was admitted to the California Bar in November 2022; and \$175-\$185 for paralegal Michelle Desilets who has worked as a legal secretary for over 20 years and obtained her paralegal certificate in 2020. (Decl. of Stelzer, ¶¶ 11-14.) Although the requested hourly rates are for attorneys based in San Diego County, the rates appear reasonable and commensurate with attorneys of similar experience practicing in business and real estate litigation in Orange County.

Defendant contends that the paralegal rate of \$175-\$185 is unsupported and excessive, but provides no evidence supporting this assertion.

The paralegal rate of \$175-\$185 is reasonable and commensurate of paralegals of similar background and experience in Orange County.

Based on the foregoing, the Court GRANTS the motion for attorney fees in the amount of \$35,349.50.

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